

BYLAWS

STRATA PLAN BCS2611

“Spectrum IV”

**602 CITADEL PARADE
VANCOUVER, BC**

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NOTICE

The attached bylaws for Strata Plan BCS2611 are in addition to those bylaws contained in the Strata Property Act of B.C. In addition to bylaws, there could also be “Rules and Regulations” which are not registered at the Land Title Office but are attached herein. For legal purposes, you should obtain a true copy of the bylaws from the Land Title Office.

(Updated March 26, 2025)

PART 1 - INTERPRETATION AND EFFECT

Section 1 - Force and Effect

1.1 These Bylaws bind the Strata Corporation and all owners/residents to the same extent, as if the Bylaws had been signed by the Strata Corporation, and each owner/resident and contained covenants on the part of the Strata Corporation with each owner/resident, and of each owner/resident with every other owner/resident to observe and perform every provision of these Bylaws.

1.2 All owners, residents and visitors must comply strictly with these Bylaws and the Rules of the Strata Corporation, as adopted and amended from time to time.

PART 2 - DUTIES OF OWNERS, TENANTS, OCCUPANTS AND VISITORS

Section 2 - Payment of Strata Fees and Special Levies

2.1 An owner must pay strata fees on or before the first (1st) day of the month to which the strata fees relate.

2.2 If an owner fails to pay the strata fees on time, the owner must pay interest on the arrears at the rate of 10% per annum, compounded annually, and calculated on a monthly basis from the date the payment was due until the date of payment.

2.3 A special levy is due and payable on the date or dates noted in the resolution authorizing the special levy.

2.4 Any owner owing money for strata fees not received by the first (1st) of the month in question will be deemed to be in arrears: penalties, subsection 2.5 (a),(b),(c) will be imposed for each month that an owner strata fees are in arrears.

2.5 If an owner fails to pay outstanding strata fees or special levies on the due date, the strata corporation will levy fines communicatively as follows:

(a) \$50 if arrears are paid in the period up to 15 days after the due date;

(b) \$100 if arrears are paid after more than 15 days, but before 30 days after the due date; and

(c) \$100 per month payable after the first full month of default.

2.6 To ensure proper collections of arrears, the strata corporation will apply one or more of the following measures against the units that owe sums in excess of \$500 to the strata corporation for either lienable or non-lienable charges:

(a) denial of access to Recreational facilities;

(b) deactivation of all but one FOB; and

(c) initiation of legal action.

These actions will be applied to the Strata Lot Owner after 2 written warnings or demand notices for collections of arrears owed. The application of this rule is authorized for arrears that pertain to, but are not limited to unpaid strata fees, special levies, interest on arrears, NSF charges, security deposit, moving fees, purchases of fobs, legal expenses, unpaid insurance deductibles, the cost for remediation of damage and repairs charge back to a unit, and fines for violations of the rental bylaws or any other Bylaw that infringe upon common safety, security or well-being of the community of the residence at Spectrum 4 (BCS2611).

2.7 An owner must provide the strata corporation or its agent with twelve (12) consecutive, monthly post-dated cheques for strata fees for the fiscal year of the strata corporation, dated as of the first day of each month, or if applicable, written authorization for monthly automatic debit from the owner's bank account. Strata lots managed by professional rental companies do not have to provide 12 post-dated cheques.

2.8 Failure by an owner to submit twelve (12) monthly, post-dated strata fee cheques or written authorization for automatic debit in accordance with subsection (2.7) is in contravention of bylaw (2.1) and the strata corporation will levy a fine according to Section 2.5, subsections (a), (b), (c), for each contravention. Each dishonored cheque or dishonored automatic debit will be subject to a fine of \$50.00 and an administration charge of \$25.00. Strata lots managed by professional rental companies do not have to provide 12 post-dated cheques.

2.9 Any fines assessed pursuant to these bylaws will be added to the strata fees of the owner following the date of the notice of infraction.

2.10 Interest, penalties and fines referred to in Sections (2.2), (2.4), (2.5) (a),(b),(c) and (2.7) above will apply to outstanding and overdue special levies and assessments.

2.11 When arrears exceed 90 days, a lien may be registered in accordance with Section 116 of the Act on the Strata Lot involved at the Owner's sole expense, for the total monies due including all strata fees outstanding, penalties assessed, all legal and other expenses.

2.12 The strata corporation may proceed under the Small Claims Act, without further authorization by the owners, to recover from an owner, by an action in debt in Small Claims Court, money owing to the strata corporation, including money owing as administration fees, bank charges, fines, penalties, interest or the costs, including legal costs, of remedying a contravention of the bylaws or rules and to recover money which the strata corporation is required to expend as a result of the owner's act, omission, negligence or carelessness or by

that of an owner's visitors, occupants, guests, employees, agents, tenants or a member of the owner's family.

2.13 Owners who are in arrears or have a lien are not eligible to vote at the Annual General Meeting/Special General Meeting, unless approved by a unanimous resolution.

Section 3 - Repair and Maintenance of Property by Owner

3.1 An owner must repair and maintain the owner's strata lot, except for repair and maintenance that is the responsibility of the strata corporation under these bylaws.

3.2 An owner who has the use of limited common property must repair and maintain it, except for repair and maintenance that is the responsibility of the strata corporation under these bylaws.

3.3 Owners, residents and visitors must use all reasonable efforts to conserve the plumbing and electrical systems of the building. Any damage to any of these systems caused by the wrongful act or neglect of a resident or visitor of the strata lot shall be repaired at the expense of the owner of the strata lot.

Section 4 - Use of Property

4.1 An owner, owner's visitor, occupant, guest, employee, agent, tenant or a member of the owner's family, must not use a strata lot, the common property or common assets in a way that:

- (a) causes a nuisance or hazard to another person;
- (b) causes unreasonable noise (compliant with Section 10 (Noise), as outlined in the BCS2611 Bylaws);
- (c) unreasonably interferes with the rights of other persons to use and enjoy the common property, common assets or another strata lot;
- (d) is illegal, or otherwise injurious to the reputation of the strata plan development; or
- (e) is contrary to a purpose for which the strata lot or common property is intended as shown expressly or by necessary implication on or by the strata plan.

4.2 An owner, owner's visitor, occupant, guest, employee, agent, tenant or a member of the owner's family, shall not:

- (a) do anything that will increase the risk of fire, or the rate of insurance on the building, or any part thereof;
- (b) permit a condition to exist within a strata lot, which will result in the waste of excessive consumption of the buildings, gas supply, domestic water, supply, or heated water;
- (c) leave or store any items on common property (including but not limited to hallways and parking lots);
- (d) obstruct or restrict sidewalks, entrances, exits, halls, passageways, stairways, and other parts of the common property, nor use any passageways or driveways for any purpose other than ingress or egress from the strata lots and parking areas within the common property;

- (e) shake rugs, carpets, mops, dusters of any kind from any balcony, window, stairway or other part of a strata lot or common property;
- (f) throw refuse or other objects out of any windows or from any balcony or patio of a strata lot;
- (g) use his strata lot for any purpose which may be injurious to the reputation of the building
- (h) make undue noise in or about any strata lot or common property;
- (i) keep any animals on his strata lot or the common property after notice not to do so from the strata council;
- (j) make or cause to be made any structural alteration to his strata lot, or paint, decorate, or add to or remove any structure from the exterior of the building or the strata lot or add to or alter the wiring, plumbing, piping, or other services on his strata lot, or within any bearing or party wall or the common property without first obtaining the written consent of the strata council;
- (k) throw refuse or any objects, cigarette, cigar, marijuana butts, fluids, or projectiles of any kind, from anywhere on the property (i.e. to any strata lot, common area ground or street below).

4.3 An owner, tenant, occupant or visitor must not cause damage, other than reasonable wear and tear, to the common property, common assets or those parts of a strata lot which the strata corporation must repair and maintain under these bylaws or insure under section 149 of the Act.

4.4 An owner shall indemnify and save harmless the strata corporation from the expense of any maintenance, repair, or replacement, rendered necessary to the common property, limited common property, common assets, or to any strata lot by the owners act, omission, negligence, or carelessness or by that of an owners, visitors, occupants, guests, employees, agents, tenants or member of the owner's family, but only to the extent that such expense is not reimbursed from the proceeds received by operation of any insurance policy.

- (a) In such circumstances, any insurance deductible paid or payable by the strata corporation shall be considered an expense not covered by the proceeds received by the strata corporation as an insurance coverage will be charged to the strata lot owner.

4.5 Unit doors are common property and therefore subject to this section 4. If an owner or resident chooses to change the locking mechanism and/or the door in any way, including new hardware, the strata lot owner is therefore responsible for the hardware and locking mechanism. Should any damage be caused to the door or door frame through the installation and/or maintenance of the new locking system, the strata lot owner will be responsible for the repair or replacement of that door, so that this is restored to its original appearance. This may include instances where the new hardware is poorly installed, and therefore detracts from the general appearance of the door.

Section 5 - No Smoking

5.1 "Spectrum 4" is a designated "non-smoking" strata corporation. **Smoking is prohibited everywhere**, including inside the individual suites. For the purposes of this bylaw the term "smoke" or "smoking" includes but is not limited to:

- (a) inhaling, exhaling, burning or carrying of a lighted cigarette, cigar, pipe, hookah pipe or other lighted smoking equipment that burns tobacco or other substances, including but not limited to marijuana;
- (b) the burning, combusting and/or vaporizing of:
 - (i) tobacco of any type;
 - (ii) any plant, plant product or by-product;
 - (iii) any drugs or pharmaceuticals including but not limited to marijuana, crack cocaine, hashish, methamphetamines or heroin;
 - (iv) e-liquids or other substances used in vaporizers, electronic cigarettes or similar
 - (v) appliances which allow for the inhalation of vapour of atomized liquids or substances.

For the purposes of this bylaw “vape” or “vaping” includes inhaling, exhaling, vapourizing or carrying or using an activated e-cigarette.

For the purposes of this bylaw “marijuana” includes any plant grown or cultivated and harvested from the cannabis plant.

5.2 A resident or visitor must not smoke or vape in or on the following areas that comprise and are part of the buildings and lands that comprise the Strata Corporation which include but are not limited to:

- (a) a strata lot;
- (b) any common property that is located within a building (including but not limited to stairways, hallways, parking garages and walkways);
- (c) any limited common property;
- (d) a balcony, patio or deck;
- (e) within six metres of a door, window or air intake; or
- (f) as set out in the Tobacco and Vapour Products Control Act and the Tobacco and Vapour Products Control Regulation.

5.3 A resident is prohibited from growing, harvesting, selling, distributing or cultivating marijuana in or on the following areas:

- (a) a strata lot;
- (b) any common property that is located within a building (including but not limited to stairways hallways, parking garages and walkways);
- (c) any limited common property;
- (d) a balcony, patio or deck; and
- (e) any exterior common property.

5.4 A resident is prohibited from consuming alcohol on Common Property, including elevators, lobbies, hallways, common facilities or any other common areas within the building.

Section 6 - Fire and Safety

6.1 An owner, tenant, occupant or visitor shall not do anything that will cause a safety hazard to the building and/or other occupiers including interfering with proper closure of fire doors by

adjusting the door closer by blocking the doors open, and/or by encumbering the hallways, landings or stairways with boxes, rubbish and/or bicycles.

6.2 Owners, tenants and occupants must not permit explosives, combustible, flammable or offensive materials to be stored on a strata lot or on the common property, except a small supply of fuel normally used for gas barbecues only.

6.3 Owners, tenants and occupants must endeavor to not permit the escape of any explosive, combustible, flammable or noxious fumes material from a strata lot.

6.4 An owner, tenant, occupant or visitor must not throw or permit to be thrown any material or substance especially burning material such as cigarettes or matches from any window or any part of the strata lot or the common property.

6.5 Every Owner, tenant, or occupant must provide access to the individual strata lots for building staff and authorized contractors, to test the fire and safety equipment within each strata lot when given advance notice by the Strata Corporation. The testing of the fire and safety equipment in the strata lot shall be completed once a year as mandated by the City of Vancouver. **If the Owner, tenant, or occupant does not provide access during the prescribed time of the inspection, the cost of re-inspection (contractor, locksmith, and building staff time cost) will be billed back to the individual strata lot Owner.**

6.6 In the event of an emergency emanating from a strata lot whose owner, tenant or occupant cannot be contacted, access for protection of another strata lot or common property or safety may have to be gained by force at the owner's expense.

6.7 An owner, tenant or occupant shall have a vacant suite checked, at minimum, once every seven (7) days to ensure there is no damage of any kind (including water) that may originate while vacant. Please note that the Strata's Concierge is not allowed to perform this inspection.

Section 7 - Inform Strata Corporation

7.1 Within two (2) weeks of becoming an owner, an owner must inform the strata corporation of the owner's name, and any and all occupants' names, strata lot number, mailing address outside the strata plan, if any, and register for online documentation and notification (email required).

7.2 On request by the strata corporation, a tenant must inform the strata corporation of his or her name and the strata lot the tenant occupies.

Section 8 - Obtain Approval Before Altering a Strata Lot

8.1 An owner must obtain the written approval of the Strata Corporation before making, or authorizing an alteration to a strata lot, including limited common property, or common assets that involves any of the following;

- (a) the structure of the building;
- (b) the interior of the strata lot, according to Section 9 (Renovation and or Alterations, Improvements Guidelines) as outlined in the BCS2611 Bylaws;
- (c) the exterior of the building or the exterior appearance of the building;

- (d) patios, stairs, balconies, or other things, attached to the exterior of the building;
- (e) doors, windows (including the casings, frames, sills of such doors or windows) on the exterior of a building, or that front on the common property;
- (f) fences, railings, or similar structures that enclose a patio, balcony, or yard;
- (g) common property, located within the boundaries of a strata lot;
- (h) those parts of the strata lot, which the Strata Corporation must ensure under section 149 of the strata act;
- (i) wiring, plumbing, heating, air conditioning, and other services that might affect his own Strata unit, other Strata units, Common Property, Limited Common Property, or Common Assets with regards to, but not limited to, increased noise, vibration, smell, etc., or anything requiring a permit from the city of Vancouver.

8.2 The Strata Corporation must not unreasonably withhold its approval for an Owner to alter a strata lot.

8.3 The Strata Corporation requires as a condition of its approval, that the Owner agrees, in writing, to obtain approval before altering common property, and to take responsibility for any and all present and future maintenance, repairs and replacements, increases in insurance, and any damage suffered or cost of expense incurred by the Strata Corporation as a direct or indirect result of the alteration, and to indemnify and hold harmless the Strata Corporation for any future cost in connection with the alteration.

8.4 An Owner, intending to apply to the Strata Corporation for permission to alter a strata lot must:

- (a) make an application in writing to the Strata Council. Complete the Renovation Forms / Package. The application must include a full set of plans, detailing all alterations and realistic construction timelines, and a \$1,000 damage deposit must be submitted, prior to work commencing, payable to the Strata Corporation BCS2611. The damage deposit is to be returned in a reasonable time period with a description of any deductions;
- (b) comply with Section 9 (Renovations and or Alterations, Improvement Guidelines) and Section 10 (Noise), as outlined in the BCS2611 Bylaws;
- (c) owners are permitted to install new flooring inside their strata lot, subject to approval from the council pursuant to Section 8 (Obtain Approval Before Altering A Strata Lot) , and to the signing of an indemnification agreement as supplied by the property manager. The following conditions apply:
 - (i) On the installation of carpet or hardwood flooring (laminated, hardwood, cork, etc.) an underlay must be installed meeting the following specifications;
 - (ii) Sound Transfer Classification (STC) of 72 or better;
 - (iii) Impact Insulation Transfer Classification (IITC) of 73 or better;
- (d) on the installation of a tile floor, the underlay must be an anti-fracture membrane;
- (e) the existing flooring is to be removed in a fashion which does not soil the common areas and is not to be dumped in the strata corporation's refuse containers. It must be removed from the site by the owners and/or contractor;
- (f) the work must be done in such a way as to not affect the quiet enjoyment of adjacent residents
- (g) All work is done at the Owners' risk and expense;

- (h) any damage to the strata unit as a result of the installation, and the costs of any resulting repairs to the unit, remain the responsibility of the Strata Lot Owner;
- (i) if an owner has installed hard floor surfaces, they must take reasonable steps to satisfy noise complaints from neighbours;
- (j) the strata corporation requires, as a condition of its approval, that the owner agree, in writing, to take responsibility for any expenses relating to the alteration.

Section 9 - Renovation and or Alterations, Improvement Guidelines

9.1 The owner of any Residential or Office lot must comply with the following requirements in connection with work, construction, alteration and renovations in the interior of his or her strata lot.

9.2 Any changes or additions to the structure or the systems employed in the building necessitated by the owner's work must be approved by the strata council, such approval not to be unreasonably withheld and be designed and performed by a professional architect or engineer at the owner's expense. In addition, the owner must employ a professional architect or engineer to handle the electrical and mechanical design distribution within the strata lot at the owner's expense.

9.3 The owner is solely responsible for preparation of all preliminary design plans, detail plans (working drawings) and specifications relating to completion of the office component of the Residential/Office Lots for occupation by the owner, the calling of tenders and letting of contracts relating to the owner's work and the supervision and completion of the owner's work.

9.4 The owner is solely responsible for obtaining all necessary approvals and permits for its work from the appropriate municipal authority and all other authorities having jurisdiction and the owner must submit evidence of these approvals to the strata council before commencing work. The owner is responsible for payment of all fees and charges incurred in obtaining said approvals and for obtaining in an occupancy permit prior to occupation.

9.5 The owner will ensure that all the provisions and conditions contained or imposed in this Bylaw 9 are observed and performed by all designers, contractors and trades engaged by the owner.

9.6 The owner will engage professional designers, consultants, contractors and subcontractors or trades. The owner will enter into its own contractual agreements with the contractor and/or subcontractors. The owner shall ensure that the contractor and/or subcontractors carry the necessary insurance and have taken out the necessary permits and shall indemnify the strata corporation for any loss, cost or damage suffered by it if they fail to do so. The owner's contractor and/or subcontractors are to ensure that their work conforms to the criteria of the overall base building standards.

9.7 The owner will indemnify the strata corporation from any and all claims arising out of work done by the owner or its contractors and the owner will promptly remove any liens filed against title to the common property in connection with its work.

9.8 The owner will cause all of its work to be done in a good and workmanlike manner and in accordance with any approvals by the strata council pursuant to section 40 as outlined in the BCS2611 Bylaws.

9.9 An owner is responsible, at their own expense, for the removal (from the complex) of all debris, including but not limited to, old carpet, discarded appliances, discarded fixtures, baseboards, tiles and drywall. Non compliance will result in the Strata Corporation removing these materials, the cost of which will be charged back to the strata lot. No debris of any kind is to be placed in the Strata Corporation's dumpster or recycling bins.

9.10 An owner is required to use floor protection on all common lobbies and hallways, common strata property, when transporting materials, tools, supplies and equipment.

9.11 Elevator must be booked (with lobby corridor walls and elevator padded) to transport any materials, equipment, large amounts/quantities of tools, and or appliances, to and from the Strata lot; an owner undertaking any alteration/renovation to or in respect of their strata lot is permitted to reserve one elevator by the hour, (Monday through Friday from 9 am to 5 pm), at a charge of \$75 per hour with a maximum of 4 hours per working day.

9.12 In addition, a refundable cash **damage deposit of \$200 will be charged for any movement of materials** on the common property related to an alteration or renovation to, or in respect of a strata lot, which fee must be paid to the strata corporation before any such movement of materials.

9.13 An Owner is responsible for cleaning the common property and limited common property, including but not limited to hallways, stairwells and elevators of any dust, dirt and debris resulting from the work at the end of each working day.

9.14 An owner is responsible for the security of the buildings at all times, and the conduct of the owners contractors and crew; if the Strata, Management or Building Supervisor decides that Security Concierge, or a Security Person will be required, a charge of \$100 for a minimum of four hours will be in effect.

9.15 Renovation Time Frame and Approval letter - When applying for a renovation, the owner or their representative must state the expected project duration for their project. The approval letter should state: 30 days, 60 days, 90 day completion, with the end or completion date. If you require an extension in time, you must submit a formal written request for time extension approval, at least 30 days prior to your original completion date.

9.16 An Owner must comply with all Bylaws listed under Section 10 (Noise) as outlined in the BCS2611 Bylaws.

Section 10 - Noise

10.1 The following are required practices for managing and abating noise.

10.2 Quiet Hours: 11pm - 8am are quiet hours when neighbours would especially appreciate quiet. Please refrain from using garburators, dishwashers, vacuums, etc. during these hours.

10.3 Noise between units. Please do not place pianos, speakers, etc. against shared walls. If you have hardwood floors, please be aware that noise transfer may be magnified between units. Area rugs can help absorb noise. If playing musical instruments, please keep windows closed.

- (a) speakers must be mounted off the floor or should sit on thick felt sound pads, away from walls;
- (b) bass sound from sound systems must be minimized;
- (c) sound systems and televisions must not be left on when people are not in a strata lot;
- (d) the quiet period when sound systems and televisions are in use, owners, tenants and occupants must take care to keep volumes at a level that will not unreasonably impact persons in other strata lots or on the common property and limited common property.

10.4 Outdoor Noise (patios, garden level and park) can be disruptive. Please be conscious of evening noise. No disruptive noise past 11pm and care must be taken to keep noise at a reasonable level.

10.5 Motors must not be unreasonably revved and except for instances of emergency, horns should not be sounded on common property.

10.6 Renovation permitted hours of work are weekdays 9:00am to 5:00 pm and Saturdays 10:00 am to 5:00 pm. An owner, tenant or occupant must not conduct work or permit work to be conducted on Sundays or holidays.

- (a) hard surface floors must be installed using the following specifications: underlay (sound deadening material) under the hardwood floor must be at least 3.5 mm thick and possess a STC (sound transmission class) rating **>72** and the IIC must be **>73** or better (as per Section 8.4 (a) 8.4(b) 8.4(c),(i)(ii)(iii) as outlined in the BCS2611 Bylaws;
- (b) council requires proof of purchase and the STC and IIC ratings for the above underlay materials in order to approve the owner's application for the installation of hardwood flooring; and
- (c) ceramic tiles on the kitchen and bathroom floors must be also be installed with sound deadening underlay material and the details of this material must be submitted to council in order to approve the owner's application for installation of ceramic flooring;
- (d) any work involving pneumatic hammering, jack hammering, chipping or grinding in a strata lot is limited to the hours between 11:00 a.m. and 3:00 p.m. (maximum 4 hours per day), weekdays only. There is to be no jack hammering, chipping or grinding on weekends or on statutory holidays.

Section 11 - Permit Entry to Strata Lot

11.1 An owner, tenant, occupant or visitor must allow a person authorized by the strata corporation to enter the strata lot:

- (a) in an emergency, without notice, to prevent property damage to the common property or another strata lot or those portions of a strata lot that are the responsibility of the strata corporation under these bylaws; and
- (b) at a reasonable time, on a minimum of twenty-four (24) hours written notice:
 - (i) to inspect, maintain or repair common property or common assets; or

- (ii) to ensure the Strata Property Act (British Columbia), as amended or replaced, and these bylaws are being complied with.

11.2 The notice referred to in Bylaw 11.1(b) must include the date, the approximate time of entry and the reason for the entry.

11.3 If the authorization cannot be obtained then the person authorized by the strata corporation to enter the strata lot may do so by using reasonable force on the locking devices, and the replacement of the locking device and any resulting damage to the door and door frame will be at the expense of the strata lot owner.

Section 12 - Maximum Occupancy

12.1 The maximum number of occupants per strata lot is as follows:

- (a) studio: 2 persons per strata lot;
- (b) 1 bedroom and a den: 3 persons per strata lot;
- (c) 2 bedroom: 5 persons per strata lot.

Section 13 - Pets

13.1 An owner, occupant, or visitor must ensure that all animals are leashed when on the common property or on land that is a common asset.

13.2 An owner, occupant must not keep any pets on a residential strata lot other than one or more of the following:

- (a) a reasonable number of fish or other small aquarium animals;
- (b) up to 2 caged birds;
- (c) one dog or one cat;
- (d) all dogs must be under 16" in height at the shoulder and weigh under 30 lbs;
- (e) an owner, tenant or occupant must register their dog and or pets with the strata corporation upon taking up residence at Spectrum 4. Tenants are to register their dog and or pets on the K Form.

13.3 Under extreme circumstances the Strata Council may declare a pet a nuisance and may order the pet to be removed from the premises. This can be done only after all other corrective measures have been exhausted, including sending the owners a minimum of three (3) written notices and related fines.

13.4 Pet owners shall be responsible for the immediate removal of all pet waste which is left anywhere on common property and limited common property. Failure to comply will result in an immediate fine up to \$100.

13.5 No pets are permitted on any part of the 3rd level garden area.

13.6 Owners are responsible for any damages caused by their pets.

13.7 Owners are prohibited from having a "vicious dog". A vicious dog is defined as:

- (a) any dog with a known propensity, tendency, or disposition to attack without provocation other domestic animals or humans; or

- (b) any dog who has bitten another domestic animal or human without provocation; or
- (c) a Pit-bull Terrier, American Pit-bull Terrier, Pit-bull, Staffordshire Bull-Terrier, American Staffordshire Terrier, Rottweiler, or any dog of which breeding includes any of the aforementioned breeds.

13.8 Pets may not be left unattended on a balcony.

13.9. In regards to 13.2(d), all dogs over 16" in height at the shoulder and weighing over 30 lbs. shall stand grandfathered as at the passing of this bylaw.

13.10 A Resident shall not permit their pet to bark excessively anytime.

PART 3 - POWERS AND DUTIES OF STRATA CORPORATION

Section 14 - Repair and Maintenance of Property by Strata Corporation

14.1 The strata corporation must repair and maintain all of the following:

- (a) common assets of the strata corporation;
- (b) common property that has not been designated as limited common property;
- (c) limited common property, but the duty to repair and maintain it is restricted to
- (d) repair and maintenance that in the ordinary course of events occurs less often than once a year, and
- (e) the following, no matter how often the repair or maintenance ordinarily occurs:
 - (i) the structure of a building;
 - (ii) the exterior of a building;
 - (iii) chimneys, stairs, balconies and other things attached to the exterior of a building;
 - (iv) doors, windows or skylights, on the exterior of a building or that front on the common property;
 - (v) fences, railings and similar structures that enclose patios, balconies and yards;
- (f) a strata lot in a strata plan that is not a bare land strata plan, but the duty to repair and maintain it is restricted to:
 - (i) the structure of a building;
 - (ii) the exterior of a building;
 - (iii) chimneys, stairs, balconies and other things attached to the exterior of a building;
 - (iv) doors and windows on the exterior of a building or that front on the common property; and
 - (v) fences, railings and similar structures that enclose patios, balconies and yards.

PART 4 - COUNCIL

Section 15 - Council Size

15.1 Subject to subsection (2), the council must have at least three (3) and not more than seven (7) members.

15.2 If the strata plan has fewer than four (4) strata lots or the strata corporation has fewer than four (4) owners, all the owners are on the council.

Section 16 - Council Member Terms

16.1 The term of office of a council member ends at the end of the annual general meeting at which the new council is elected.

16.2 A person whose term as council member is ending is eligible for reelection.

16.3 No person may be elected to council or continue to be on council if the strata corporation is entitled to register a lien under the Act against a strata lot in which that person has an interest.

Section 17 - Removing Council Member

17.1 Unless all the owners are on the council, the strata corporation may, by a resolution passed by a majority vote at an annual or special general meeting, remove one (1) or more council members.

17.2 After removing a council member, the strata corporation must hold an election at the same annual or special general meeting to replace the council member for the remainder of the term.

Section 18 - Replacing Council Member

18.1 If a council member resigns or is unwilling or unable to act for a period of two (2) or more months, the remaining members of the council may appoint a replacement council member for the remainder of the term.

18.2 A replacement council member may be appointed from any person eligible to sit on the council.

18.3 The council may appoint a council member under this section even if the absence of the member being replaced leaves the council without a quorum.

18.4 If all the members of the council resign or are unwilling or unable to act for a period of two (2) or more months, persons holding at least 25% of the strata corporation's votes may hold a special general meeting to elect a new council by complying with the provisions of the Act, the regulations and the bylaws respecting the calling and holding of meetings.

Section 19 - Officers

19.1 At the first (1st) meeting of the council held after each annual general meeting of the strata corporation, the council must elect, from among its members, a president, a vice president, a secretary and a treasurer.

19.2 A person may hold more than one (1) office at a time, other than the offices of president and vice president.

19.3 The vice president has the powers and duties of the president.

- (a) while the president is absent or is unwilling or unable to act, or
- (b) for the remainder of the president's term if the president ceases to hold office.
- (c) If an officer other than the president is unwilling or unable to act for a period of two (2) or more months, the council members may appoint a replacement officer from among themselves for the remainder of the term.

Section 20 - Calling Council Meetings

20.1 Any council member may call a council meeting by giving the other council members at least one (1) week's notice of the meeting, specifying the reason for calling the meeting.

20.2 The notice does not have to be in writing.

20.3 A council meeting may be held on less than one (1) week's notice if

- (a) all council members consent in advance of the meeting, or
- (b) the meeting is required to deal with an emergency situation, and all council members either
 - (i) consent in advance of the meeting, or
 - (ii) are unavailable to provide consent after reasonable attempts to contact them.

20.4 The council must inform owners about a council meeting as soon as feasible after the meeting has been called.

Section 21 - Requisition of Council Hearing

21.1 By application in writing, stating the reason for the request, an owner or tenant may request a hearing at a council meeting.

21.2 If a hearing is requested under subsection (1), the council must hold a meeting to hear the applicant within one (1) month of the request.

21.3 If the purpose of the hearing is to seek a decision of the council, the council must give the applicant a written decision within one (1) week of the hearing.

Section 22 - Quorum of Council

22.1 A quorum of the council is

- (a) 1, if the council consists of one member;
- (b) 2, if the council consists of 2, 3 or 4 members;
- (c) 3, if the council consists of 5 or 6 members;
- (d) 4, if the council consists of 7 members.

22.2 Council members must be present in person at the council meeting to be counted in establishing quorum.

Section 23 - Council Meetings

23.1 At the option of the council, council meetings may be held by electronic means, so long as all council members and other participants can communicate with each other.

23.2 If a council meeting is held by electronic means, council members are deemed to be present in person.

23.3 Owners may attend council meetings as observers.

23.4 Despite subsection (3), no observers may attend those portions of council meetings that deal with any of the following:

- (a) bylaw contravention hearings under section 135 of the Act;
- (b) rental restriction bylaw exemption hearings under section 144 of the Act;
- (c) any other matters if the presence of observers would, in the council's opinion unreasonably interfere with an individual's privacy. Voting at council meetings.

Section 24 - Voting at Council Meetings

24.1 At council meetings, decisions must be made by a majority of council members present in person at the meeting.

24.2 Unless there are only two (2) strata lots in the strata plan, if there is a tie vote at a council meeting, the president may break the tie by casting a second, deciding vote.

24.3 The results of all votes at a council meeting must be recorded in the council meeting minutes.

Section 25 - Council to Inform Owners of Minutes

25.1 The council must inform owners of the minutes of all council meetings within two (2) weeks of the meeting, whether or not the minutes have been approved.

Section 26 - Delegation of Council's Powers and Duties

26.1 Subject to subsections (2) to (4), the council may delegate some or all of its powers and duties to one (1) or more council members or persons who are not members of the council, and may revoke the delegation.

26.2 The council may delegate its spending powers or duties, but only by a resolution that

- (a) delegates the authority to make an expenditure of a specific amount for a specific purpose, or
- (b) delegates the authority to make expenditures in accordance with subsection (3).

26.3 A delegation of a general authority to make expenditures must

- (a) set a maximum amount that may be spent, and
- (b) indicate the purposes for which, or the conditions under which, the money may be spent.

26.4 The council may not delegate its powers to determine, based on the facts of a particular case,

- (a) whether a person has contravened a bylaw or rule;
- (b) whether a person should be fined, and the amount of the fine; or
- (c) whether a person should be denied access to a recreational facility.

Section 27 - Spending Restrictions

27.1 A person may not spend the strata corporation's money unless the person has been delegated the power to do so in accordance with these bylaws.

27.2 Despite subsection (1), a council member may spend the strata corporation's money to repair or replace common property or common assets if the repair or replacement is immediately required to ensure safety or prevent significant loss or damage.

Section 28 - Limitation on Liability of Council Member

28.1 A council member who acts honestly and in good faith is not personally liable because of anything done or omitted in the exercise or intended exercise of any power or the performance or intended performance of any duty of the council.

28.2 Subsection (1) does not affect a council member's liability, as an owner, for a judgment against the strata corporation.

PART 5 - ENFORCEMENT OF BYLAWS AND RULES

Section 29 - Fines

29.1 The strata corporation may fine an owner or tenant maximum of:

- (a) \$200 for each contravention of a bylaw; and
- (b) \$50 for each contravention of a rule;
- (c) \$500.00 for each contravention of a rental restriction or rental prohibition bylaw; or
- (d) \$1,000 for each contravention of a bylaw that prohibits or limits use of all or part of a residential strata lot for remuneration as vacation, travel or temporary accommodation.

29.2 The strata corporation may impose a fine on an owner or tenant for a continuing contravention of a bylaw or rule every seven (7) days.

29.3 Additional assessments, fines authorized by these bylaws, banking charges, filing costs, expense, interest charges and any other expenses incurred by either the strata corporation to enforce these bylaws, as they may be amended from time to time, or any rule which may be established from time to time by the council pursuant to the Act or these bylaws, shall become part of the assessment of the owner responsible and shall become due and payable on the first (1st) day of the month next following, except that any amount owing in respect of a fine or the cost of remedying the contravention of a bylaw will be calculated as a separate component of

such assessment and the strata corporation may not register a lien against such separate component.

Section 30 - Continuing Contravention

30.1 If an activity or lack of activity that constitutes a contravention of a bylaw or rule continues, without interruption, for longer than 7 days, a fine may be imposed every 7 days. In the case of a bylaw that prohibits or limits use of all or part of a residential strata lot for remuneration as vacation, travel or temporary accommodation, a fine of \$1,000.00 may be imposed daily.

Section 31 - Small Claims Actions

31.1 Notwithstanding any provision of the Act, the strata corporation may proceed under the Small Claims Act (British Columbia) against an owner or other person to collect money owing to the strata corporation, including money owing as a fine, without requiring authorization by a resolution passed by a $\frac{3}{4}$ vote of the strata corporation.

PART 6 - ANNUAL OR SPECIAL GENERAL MEETINGS

Section 32 - Person to Chair Meeting

32.1 Annual and special general meetings must be chaired by the president of the council.

32.2 If the president of the council is unwilling or unable to act, the meeting must be chaired by the vice president of the council.

32.3 If neither the president nor the vice president of the council chairs the meeting, a chair must be elected by the eligible voters present in person or by proxy from among those persons who are present at the meeting.

Section 33 - Electronic Attendance at Meetings

33.1 A Strata may provide for attendance at an annual or special general meeting by electronic means, if the method permits all persons participating in the meeting to communicate with each other during the meeting.

33.2 A person who attends a meeting as provided under 33.(1) is deemed to be present in person at the meeting.

33.3 Despite bylaw 33.(1), in the event that an eligible voter attends an annual or special general meeting by electronic means, the strata corporation has no obligation to make provision for a secret ballot for that particular voter.

Section 34 - Participation by Other than Eligible Voters

34.1 Tenants and occupants may attend annual and special general meetings, whether or not they are eligible to vote.

34.2 Persons who are not eligible to vote, including tenants and occupants, may participate in the discussion at the meeting, but only if permitted to do so by the chair of the meeting.

34.3 Persons who are not eligible to vote, including tenants and occupants, must leave the meeting if requested to do so by a resolution passed by a majority vote at the meeting.

Section 35 - Quorum

35.1 If at the time appointed for a general meeting, a quorum is not present, the meeting shall stand adjourned for a period of fifteen minutes whereupon the adjourned meeting shall be reconvened at the same place and the persons present in person or by proxy and entitled to vote, shall constitute a quorum.

Section 36 - Voting

36.1 At an in person annual or special general meeting, voting cards must be issued to eligible voters. Voting cards are not required at an annual or special general meeting by electronic means.

36.2 At an annual or special general meeting a vote is decided on a show of voting cards, unless an eligible voter requests a precise count. Voting cards are not required to be issued at an annual or special general meeting by electronic means.

36.3 If a precise count is requested, the chair must decide whether it will be by show of voting cards or by roll call, secret ballot or some other method.

36.4 The outcome of each vote, including the number of votes for and against the resolution if a precise count is requested, must be announced by the chair and recorded in the minutes of the meeting.

36.5 If there is a tie vote at an annual or special general meeting, the president, or, if the president is absent or unable or unwilling to vote, the vice president, may break the tie by casting a second, deciding vote.

36.6 If there are only two (2) strata lots in the strata plan, subsection (36.5) does not apply.

36.7 Despite anything in this section, an election of council or any other vote must be held by secret ballot, if the secret ballot is requested by an eligible voter. An eligible voter attending an annual or special general meeting by electronic means is not entitled or required to vote by secret ballot.

36.8 An owner may not exercise the owner's vote in respect of the owner's strata lot if the strata corporation is entitled to register a lien under the Act against that owner's strata lot, except on matters requiring a unanimous vote.

Section 37 - Order of Business

37.1 The order of business at annual and special general meetings is as follows:

- (a) certify proxies and corporate representatives and issue voting cards (voting cards are not required to be issued at an annual or special general meeting by electronic means);
- (b) determine that there is a quorum;
- (c) elect a person to chair the meeting, if necessary;
- (d) present to the meeting proof of notice of meeting or waiver of notice;
- (e) approve the agenda;
- (f) approve minutes from the last annual or special general meeting;
- (g) deal with unfinished business;
- (h) receive reports of council activities and decisions since the previous annual general meeting, including reports of committees, if the meeting is an annual general meeting;
- (i) ratify any new rules made by the strata corporation under section 125 of the Act;
- (j) report on insurance coverage in accordance with section 154 of the Act, if the meeting is an annual general meeting;
- (k) approve the budget for the coming year in accordance with section 103 of the Act, if the meeting is an annual general meeting;
- (l) deal with new business, including any matters about which notice has been given under section 45 of the Act;
- (m) elect a council, if the meeting is an annual general meeting;
- (n) terminate the meeting.

PART 7 - VOLUNTARY DISPUTE RESOLUTION

Section 38 - Voluntary Dispute Resolution

38.1 A dispute among owners, tenants, the strata corporation or any combination of them may be referred to a dispute resolution committee by a party to the dispute if

- (a) all the parties to the dispute consent, and
- (b) the dispute involves the Act, the regulations, the bylaws or the rules.

38.2 A dispute resolution committee consists of

- (a) one (1) owner or tenant of the strata corporation nominated by each of the disputing parties and one (1) owner or tenant chosen to chair the committee by the persons nominated by the disputing parties, or
- (b) any number of persons consented to, or chosen by a method that is consented to, by all the disputing parties.

38.3 The dispute resolution committee must attempt to help the disputing parties to voluntarily end the dispute.

PART 8 - SIGNAGE AND POSTINGS

Section 39 - Marketing Activities by Owner Developer Promotion

39.1 During the time that the owner developer of the strata corporation is the owner or lessee of any units, it shall have the right to maintain any unit or units, whether owned or leased by it, as a display unit or sales centre, and to carry on marketing, sales or leasing functions it considers necessary in order to enable it to sell or lease the units.

39.2 At the reasonable discretion of the owner developer, it may use the common property to conduct the sale or lease of strata lots in the strata plan up to thirty-six (36) months after the date of first (1st) occupancy of any such strata lot.

39.3 Signs advertising the sale, lease or open house of a strata lot must be displayed on the common post supplied by the strata corporation and may not be displayed in the windows or on the balcony of a strata lot. Notwithstanding the foregoing, marketing signs of the owner developer may be displayed on the common property and/or the limited common property or window of any strata lot owned or leased by the owner developer at the reasonable discretion of the owner developer.

Section 40 - Signage Guidelines

40.1 The owner of any (Live/Work) Residential/Office strata Lot may affix signage/office identity adjacent to the front entrance door of such strata lot provided that such signage/office identity shall conform to the following specifications:

- (a) signage shall be limited in size to a maximum of twelve (12) inches in width and eight (8) inches in height;
- (b) signage shall be placed at a location at the (Live/Work) Residential/Office strata Lot specified by the architect for the development; Strata Corporation BCS2611;
- (c) no electrical back-lighting, neon or other similar illumination shall be incorporated;
- (d) no window applied graphics is permitted;
- (e) only one (1) sign per strata lot is permitted;
- (f) all signs must meet City of Vancouver approval and are subject to the Bylaws of the strata corporation.

PART 9 - PARKING

Section 41 - Parking/Storage Area Lease

41.1 Each owner of a strata lot may be entitled to the exclusive use of zero (0), one (1) or more of the parking stalls and may be entitled to the use of a storage area located in the parking facility pursuant to a partial assignment of the Parking/Storage Area lease (the "Parking/Storage Area Lease") between Concord Pacific Group Inc. and Pacific Place Developments Corporation as tenant, a copy of which is attached hereto. Pursuant to the Parking/Storage Area Lease,

upon the registration of the strata plan for the strata development, the strata corporation will automatically assume all of the covenants and obligations of Concord Pacific Group Inc. under the Parking/Storage Area Lease with respect to the Stalls and the Storage Areas (as defined in the Parking/Storage Area Lease) which are located on the common property.

Section 42 - Residents Vehicles and Parking

42.1 A Resident shall use the parking garage specifically assigned to their Strata Lot for vehicle parking, save and except private arrangements with other Owners for parking garage(s) assigned to such Owners.

42.2 A Resident shall not sell, lease or rent a parking garage assigned to a Strata Lot to a person who is not a Resident.

42.3 No one shall park a motorhome, trailer, boat or equipment of any kind on Common Property.

42.4 Vehicles found in unallocated spaces will be removed immediately, without notice, at the vehicle owner's expense.

42.5 No one shall park under any circumstances on interior roadways or driveways. Any vehicle found parking in a prohibited area will be removed, without notice, at the vehicle owner's expense.

42.6 No one shall park in a way that reduces the width of the garage roadway, other parking spaces, stairwells or walkways. Vehicles parked in contravention of this section will be removed, without notice, at the vehicle owner's expense.

42.7 No one shall use the common parking areas for storage of any kind.

42.8 No one shall make major repairs or adjustments to a vehicle on Common Property or in parking garages.

42.9 No one shall allow a vehicle to cause any oil leaks or exhaust stains to parking stalls. A Resident, on notice from the Corporation, shall clean up all drippings. If, after notice, a Resident fails to do so, the Corporation will clean the leaks and stains and charge the cost of such clean up to the Owner.

42.10 No one shall park or store an unlicensed or uninsured vehicle or non-operational vehicle on Common Property, including garages. Vehicles not bearing current licence plates or displaying a valid certificate of storage insurance (with a minimum of \$1,000,000.00 liability) will be towed away, without notice, at the vehicle owner's expense.

42.11 A Resident who finds an unauthorized vehicle parked in their assigned parking garage or blocking ingress or egress to the same shall contact the Concierge to have the vehicle removed which removal will be at the expense of the vehicle owner.

42.12 No one shall drive faster than 10 km/h on Common Property.

42.13 No one shall sound a vehicle horn or allow a vehicle to make any other noise that is a nuisance.

42.14 A Resident or Visitor shall not obstruct a fire lane. A vehicle in contravention of this section will be towed immediately, without notice, at the expense of the vehicle Owner.

Section 43 - Larger Parking Stalls

43.1 An Owner of a strata lot who has been assigned the use of a parking stall which is larger in size than a standard parking stall may park two (2) vehicles or park one (1) vehicle and store items such as motorbikes, canoes or kayaks within such stall, provided that such arrangements do not obstruct access to and use of the drive aisles and/or other parking stalls by other users and are in compliance with all applicable laws and bylaws.

PART 10 - STORAGE

Section 44 - Storage Room

44.1 For a period of ten (10) years after the registration of the strata plan for the strata development, the owner-developer will be entitled to designate for its use one (1) or more storage rooms of its choice within the common property and will be entitled to free access to and from such storage room(s) through the development and the use of such storage rooms for the storage of building materials and equipment at all times during the ten (10)-year period. The owner-developer will be entitled to install its own lock on the door and the strata corporation will not be entitled to a key during that ten (10)-year period provided that after the end of the ten (10)-year period, the owner developer will, upon request by the strata corporation, deliver up vacant possession of the storage room(s) and all keys thereto.

Section 45 - Bicycle / Motorized / Electric Scooters, Hoverboards, or Skateboards Storage

45.1 An owner, tenant, occupant, visitor or delivery person must not take a bicycle through the lobby area or in the elevator.

45.2 Bicycles shall be kept in designated bicycle storage areas only.

45.3 Bicycles must be carried into and within the building with the exception of the underground parking facility. **Bicycles shall not be transported through common hallways or in the elevators of the Strata Plan.**

45.3 Motorized or Electric Scooters, Hoverboards, or Skateboards, must be carried on any common areas of the Strata plan, except in the underground parking facility (After, Strata provides a designated secured storage area, then an Owner's, Tenants, Residents must comply with Bylaw **45.3(c)** **45.3 (d)** as outlined in the BCS2611 Bylaws.)

- (a) Only **One** Motorized or Electric Scooters, Hoverboards, or Skateboards is permitted in the elevator **at a time**, and must be **Powered Off**.
- (b) An Owner, an Owner's tenant, occupant, visitor, delivery person is responsible for property damage and all cleaning costs associated with transporting or riding motorized

or electric scooters, e scooters, hoverboards, motorized or electric skateboards on any common areas of the Strata plan. All Cleaning and Repair costs will be immediately charged back to the Strata Lot Owner.

- (c) **Once the Strata Corporation provides use of a designated area** for personal Motorized or Electric Scooters, Hoverboards, or Skateboards, the following **bylaws 40.3(d) will be in effect:**

- (d) Motorized or Electric Scooters, Hoverboards, or Skateboards, must only be kept in the designated storage space. An Owner of the strata lot will be entitled to the use of such designated storage space within the secured area in the parking facility, designed for that purpose, free of charge, on a first come, first serve basis, as there will be limited available spaces. (This will not prohibit the imposition of a refundable \$100 damage deposit and a non refundable \$50 fee (per key) or (security pass)).

45.4 Bicycles and Motorized or Electric Scooters, Hoverboards, or Skateboards found in non-designated / unallocated spaces will be removed up to and including cutting free the bicycle, Motorized or Electric Scooters, Hoverboards, or Skateboards, or their locks, if necessary, from handrails or fences at the sole expense of the owner. Bicycles, Motorized or Electric Scooters, Hoverboards, or Skateboards removed will be locked up by the property manager to enforce the rules of the strata corporation for a period up to thirty (30) days. All unclaimed bicycles, Motorized or Electric Scooters, Hoverboards, or Skateboards, will thereafter be disposed of to recover the costs of removal and/or storage.

45.5 To recover a removed bicycle, Motorized or Electric Scooters, Hoverboards, or Skateboards, the owner will pay \$50.00 to cover the cost of removing and storage. This money is payable to the strata corporation. Strata Corporation BCS2611.

45.6 Skateboarding, rollerblading /skating is not permitted in any common areas of the Strata Plan.

45.7 The owner of each strata lot will be entitled to the use of one (1) bicycle storage space within the secured area in the parking facility designed for that purpose, free of charge (but this will not prohibit the imposition of reasonable refundable security deposits for the issuances of keys and security passes). The strata council will, subject to the provisions of the Strata Property Act (British Columbia), as amended or replaced, be responsible for the orderly administration of the use of bicycle storage space to each owner. Such administration may also include, without limitation, the issuance of keys or security passes and the licensing of the use of any unallocated bicycle storage spaces, including charging fees to users if approved by resolution of the strata corporation.

PART 11 - RENTALS AND MOVING

Section 46 - Leasing Requirements

46.1 An owner must:

- (a) cause the tenant / sub-tenant to execute a Form K – Notice of Tenant's Responsibilities, stating the term of the tenancy, as provided in the Strata Property Act (British Columbia),

- as amended or replaced, prior to his or her occupation of the strata lot and provide the strata corporation with a copy thereof; and
- (b) not lease a unit for a term less than 30 days

Section 47 - Move In / Move Out Procedure

47.1 An owner, tenant or resident must:

- (a) schedule every move-in or move-out in advance with the Concierge. Available times are subject to:
- (i) previously scheduled moves
 - (ii) properly schedule open houses as set out in Section 57 and
 - (iii) the deployment of an additional Concierge, Security or Staff for the purpose of overseeing the move, and performing and completing common area inspection reports.
- (b) provide a security deposit of \$300.00 prior to each move-in or move-out, to be returned in a reasonable time period with a description of any deductions.
- (c) provide a \$250.00 non-refundable fee prior to a move-in or move-out except \$100.00 in the case of townhouses and those moving within the building.

47.2 An owner will be charged an additional \$125.00 fee each time they, or their Tenant(s):

- (a) miss a scheduled move-in or move-out, except if cancelled or rescheduled at last 48 hours in advance, or if the Strata Corporation is able to mitigate all costs completely for the additional concierge, security and/or staff.
- (b) perform an unscheduled move-in or move-out will result in an immediate \$100 fine plus the move in / move out fees for performing an unauthorized /unscheduled move in or move out.

47.3 For security purposes, a tenant may, prior to move-in or move-out be required to produce identification matching the executed "Form K-Notice of Tenant's Responsibilities" provided by the owner as outlined in Section 7 (Inform Strata Corporation), Section 46.1(a),(b) (Leasing Requirements) of the BCS2611 Bylaws.

Section 48 - Delivery of Furniture

48.1 Residents expecting deliveries and or removal of furniture, appliances and or other large items (larger than what can be carried by a person over a single trip without occupying more than half the usable space in the elevator) must advise the Concierge in advance so that arrangements may be made in accordance with Bylaw 47.1(a) (i),(ii),(iii).

48.2 Elevator must be booked (with lobby corridor walls and elevator padded) to transport furniture and or appliances, or other large items, to and from the Strata lot; an owner undertaking any furniture, appliance or large item delivery and or removal to or in respect of their strata lot is permitted to reserve one elevator by the hour, (Monday through Friday from 9 am to 5 pm), at a charge of \$75 per hour with a maximum of 4 hours per working day.

48.3 In addition, a refundable cash **damage deposit** of \$200 will be charged for any movement of furniture, appliances, and or any large item on the common property related to or in respect of their strata lot, which must be paid to the strata corporation before any such movements.

Section 49 - No Short-Term Rentals

49.1 Nightly and Short-Term Rentals are NOT allowed: an owner, tenant or occupant must not use or permit to be used a residential strata lot, common property or common assets in a way that is for commercial or professional purposes or activities, including but not limited to the following:

- (a) short-term rentals;
- (b) hotel or hotel-like accommodation;
- (c) a boarding or lodging house;
- (d) bed and breakfast;
- (e) airbnb, Homeaway, VRBO or any other vacation-like, short-term rental or short-term accommodation;
- (f) executive home rental arrangements;
- (g) house swaps;

This bylaw does not prohibit the right of owners and residents to have guests in their home. For the purposes of this bylaw guests are defined as family, friends or acquaintances of the owner or resident staying for one day or more, but no more than 30 days, with a resident.

49.2 For the purpose of bylaws 49 (No Short Term Rentals), short-term license agreements or other short-term accommodation are defined as any lease, tenancy agreement, license agreement, or agreement to occupy a strata lot that has periods of less than 30 days.

PART 12 - APPEARANCE OF STRATA LOTS

Section 50 - Balconies, Patios and Items Visible from the Exterior

50.1 No storage is allowed on balconies / patios with the exception of barbecues or similar devices, and patio furniture.

50.2 No bird feeders are allowed on balconies / patios.

50.3 No laundry is to be dried on balconies / patios.

50.4 All items on balconies / patios must be safely secured.

50.5 Outdoor holiday lights are permitted only from November 15th to January 31st inclusive or other festive occasions with prior notice to Strata Council.

50.6 No excessive water shall be used to clean balconies / patios during maintenance procedures. Therefore, a minimal amount, and extreme caution is required, if using water to clean balconies / patios.

50.7 No items shall be displayed in, or on, strata lot windows which are visible from the exterior of the building including, but not limited to, window hangings or blinds.

50.8 No items shall be thrown down or dropped down into a strata lot below.

50.9 A Resident shall not apply any metallised or reflective coatings on glass windows or doors.

50.10 A Resident shall not install, hang, erect or attach to the exterior of a Strata Lot or on or in any Balcony or Patio any radio or television antenna or similar structure or appurtenance without the advance written approval of the Council.

50.11 A Resident shall not alter the exterior appearance of the Building by adding any wood, iron work or concrete or paint any of them.

50.12 No Turf Mats, Pet Pee Mats, or any Moisture trapping flooring, mats or coverings on patio balcony membranes. Nothing is to be glued, nailed, screwed, or permanently fastened to or on common property, including balcony membranes, exterior walls, exterior windows, railings and concrete patio flooring.

50.13 A resident must not throw, pile or store rubbish, garbage, boxes, packing cases and other similar refuse on patios or on common property. Any expenses incurred by the strata corporation to remove, dispose and or recycle such refuse will be immediately charged to the Strata Lot Owner.

Section 51 - Planters/Landscaped Areas

51.1 Owners of the strata lots which do not have enclosed balconies will not place planters, landscaping or other such items or equipment within any part of the limited common property designated on the strata plan exclusively for the use of such owner unless, in the opinion of the strata council, such planters, items or equipment are in keeping with the balance of the development in terms of design, quality, proportion and color.

51.2 Any such planters, landscaping items or equipment (including, without limitation, landscaped areas and/or planters designated as limited common property and installed as part of the original development) will be maintained in good and tidy condition on an ongoing basis and the responsibility for such maintenance will be solely for the account of the owner of the strata lot entitled to the use of the limited common property on which they are placed.

51.3 No strata lot owner within a landscaped area and/or planter designated as limited common property will change, alter or amend the plantings within such landscaped areas and/or planters without the written consent of the strata council.

PART 13 - SECURITY

Section 52 - Security

52.1 Residents shall restrict building access to individuals not known as residents, except in the case of risk to personal safety. Any unauthorized access must be reported to the on-staff Concierge or Security.

52.2 Residents entering the parkade must stop and wait for the gate to close entirely before proceeding into the parkade. Should there be vehicles directly behind, Residents must wait for

the indicator lights to turn green before proceeding. The last car entering the parkade must wait for the gate to close completely before entering into the parkade.

PART 14 - GARBAGE / RECYCLING

Section 53 - Garbage Disposal / Recycling

53.1 Garbage and recycling should be disposed of properly, and exclusively in the garbage room located on P1.

53.2 It is an owner's responsibility to ensure they, or their tenant(s), possess key(s) for the garbage room located on P1.

53.3 Any materials, other than household refuse, must be disposed of off site at his or her expense. All expenses incurred by the Strata to remove, dispose and or recycle such refuse, **will be immediately charged to the Strata lot Owner.** Contravention of this bylaw will result in an Immediate \$100 fine charged to the Owner of the Strata lot.

53.4 No Mattresses, furniture, appliances, humidifiers, air conditioners, construction related wood, pipes, sinks, toilet items, fixtures, cupboards, suitcases, or any large items (Maximum size limited to 18" height x 20"width) are to be disposed of in the recycle room / garbage room or on common property. These items must be disposed of off site at his / her expense. **All expenses incurred by the Strata to remove, dispose and or recycle such refuse, will be immediately charged to the Strata Lot Owner.** Contravention of this bylaw will result in an Immediate \$100 fine charged to the Owner of the Strata lot.

PART 15 - INSURANCE

Section 54 - Insurance & Responsibility

54.1 For the purposes of these bylaws, "strata insurance" refers to the insurance coverage obtained and maintained by the strata corporation pursuant to the Strata Property Act (the "Act") and these bylaws.

54.2 An owner, tenant or occupant is responsible for obtaining insurance coverage to cover risks that are not covered by the strata insurance. Without limiting the foregoing, an owner is responsible for obtaining insurance coverage to pay any deductibles payable under the strata insurance for which the owner is responsible. The owner must provide the strata corporation with a copy of the owner's insurance policy upon written request by the strata corporation.

54.3 If an owner is responsible for any loss or damage to a strata lot, common property, limited common property, or common assets, that owner must indemnify and save harmless the strata corporation from the expense of any maintenance, repair or replacement rendered necessary to the strata lot, common property, limited common property or common assets but only to the extent that such expense is not reimbursed from the proceeds received by operation of any strata insurance policy.

54.4 For clarity and without limiting the meaning of the word “responsible”, an owner is deemed to be responsible, under bylaw 51(3), where any of the following applies:

- (a) the owner is responsible for any loss or damage to the common property, limited common property, common assets or to any strata lot, and/ or personal injury or death, as the word “responsible” has been interpreted in the courts or a tribunal in connection with section 158(2) of the Act; or
- (b) any loss or damage to the common property, limited common property, common assets or to any strata lot, and/ or personal injury or death, where the cause of such loss or damage is the result of an act, omission, negligence or carelessness of the owner, and/or owner’s tenants, occupants, and visitors (including family members, employees, agents, contractors, guests or invitees) or arises from anything left in or on common property by the owner, and/or by any of the owner’s tenants, occupants, and visitors (including family members, employees, agents, contractors, guests or invitees); or
- (c) any loss or damage caused to the common property, limited common property, common assets or to any strata lot, and/or personal injury or death, where the cause of such loss or damage originated within the owner’s strata lot or limited common property designated for the exclusive use of such owner’s strata lot, including, but not limited to, anything arising from any of the following:
 - (i) dishwasher;
 - (ii) refrigerator with ice/water dispensing capabilities;
 - (iii) garburator;
 - (iv) washing machine;
 - (v) toilets, sinks, bathtubs;
 - (vi) dedicated plumbing related pipes and fixtures, that solely service a strata lot;
 - (vii) fireplaces
 - (viii) exhaust fans and humidifiers/dehumidifiers;
 - (ix) anything introduced into the strata lot by a resident or visitor;
 - (x) any alterations or additions to or repair of the strata lot, the limited common property or the common property made by or at the request of an owner, tenant, or occupant, of the strata lot;
 - (xi) any pets residing in or visiting at the owner’s strata lot;
 - (xii) any person residing in or visiting at the owner’s strata lot; and
 - (xiii) barbecues or smokers.

54.5 For the purposes of these bylaws, **an expense not covered by the strata insurance proceeds** received by the strata corporation includes:

- (a) the costs of investigating the cause of any loss or damage, where the owner is responsible;
- (b) the costs of repairing the cause of any loss or damage, where the owner is responsible;
- (c) legal costs, on a full indemnity basis, incurred in relation to defending any claim against the strata corporation, and/or prosecuting any claim made against the owner;
- (d) any insurance deductible paid or payable by the strata corporation; and
- (e) the costs to repair the loss or damage, where no strata insurance policy operates or where the strata council decides not to make a claim on any strata insurance policy

because no strata insurance policy would operate or because making a claim is not in the best interests of the strata corporation, as determined by the strata council acting reasonably. Where an insurance claim is not made because it would not be in the best interests of the strata corporation, the owner's liability under this bylaw 51(5) is limited to an amount equal to the insurance deductible that would have been paid or payable by the strata corporation had an insurance claim been made and accepted by the insurer. An expense not covered by the strata insurance proceeds received by the strata corporation will be charged to the owner. For certainty, nothing in this bylaw 51 requires the strata corporation to make a claim on any strata insurance policy in order to charge an amount to the owner in accordance with bylaws 51(1), 51(2), and/or 51(3).

54.6 Any costs, including, not exhaustively, legal costs on a full indemnity basis, incurred by the strata corporation in enforcing the bylaws or rules of the strata corporation will be the responsibility of and will be recoverable from the person who may be fined for the contravention of a bylaw or rule under section 130 of the Act.

PART 16 - MISCELLANEOUS

Section 55 - Barbecues and Heaters

55.1 Only propane or electric barbecues or heaters are permitted.

55.2 All propane tank valves must be in the "off" position when not in use and/or being carried through common property. Electric units shall be disconnected from the outlet when not in use.

55.3 Barbecuing is permitted on the balconies and patios of each applicable strata lot, provided it is conducted in a safe manner and does not create a nuisance to other residents.

55.4 Barbecuing equipment must be maintained in an orderly appearance and stored outside.

55.5 Barbecues must be kept clean to reduce smoke and odors disturbing other residents.

55.5 Failure to comply resulting in complaints may result in suspension of barbecuing rights.

Section 56 - Garden Access

56.1 Garden level access is permitted to residents, and a reasonable number of guests whom they must accompany between the hours of 8:00 a.m. and 11:00 p.m. daily only.

56.2 Alcoholic beverages are not permitted on the garden level

56.3 Barbeques or similar devices/equipment are not permitted on the garden level.

56.4 No Smoking or Vaping, compliant to Section 5 (No Smoking) bylaws.

Section 57 - Real Estate

57.1 Open Houses Owners, or their agents, may only hold open houses Saturdays and/or Sundays between 2 and 4 pm, which must be requested from and confirmed by the Concierge in advance, and are only allowed if no move in/out are previously scheduled.

57.2 For Sale Signage Only during open houses is signage advertising real estate for sale allowed, except where conflicting with BCS2611 Bylaw 40 in the case of Residential/Office Lots. During open houses a maximum of two signs up to 60cm (2') in any dimension must be placed safely outside the building on the ground level, clear of any foot or traffic routes, and only on Saturdays and / or Sundays between 2 and 4 pm during properly scheduled open houses as set out in Section 57.1. Municipal outdoor signage bylaws should also be considered.

57.3 An owner, or their agent, shall allow only supervised access throughout the duration of the showing to each potential buyer, and otherwise follow the same building entrance guidelines as described in Section 52. The owner shall indemnify the Strata Corporation for any damages, caused directly or indirectly, by any individuals they allow in the building or otherwise secured common areas.

Section 58 - Use of (Live/Work) Strata Lots

58.1 The owners of Strata lots 1-19 (collectively, the "Residential/Office Lots") are entitled to use the office component of the Residential/Office Lots as an office for any lawful businesses in that strata lot, other than a health enhancement centre or any dating service, entertainment service, exotic dancer business, social escort service or other similar business, at all hours and on all days subject only to compliance with all applicable laws, rules and regulations of all governments and governmental authorities.

58.2 The strata corporation must not interfere with or prevent any business permitted in Bylaw 39.1 from being conducted in the office component of the Residential/Office Lots. No bylaw, rule or regulation will be passed by the strata corporation which directly or indirectly unreasonably interferes with or prevents an owner or occupant of the Residential/Office Lots from carrying on a lawful business in accordance with Bylaw 39.1.

58.3 This bylaw will not be repealed or altered without the written consent of at least $\frac{3}{4}$ of the owners of the Residential/Office Lots.

58.4 The owners of Strata lots 1-19 (collectively, the (Live/Work) "Residential/Office Lots") must be compliant with Section 40 (Signage Guidelines) as outlined in the BCS2611 Bylaws.